

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kathryn Duffy	Team: Team # 1	CCRB Case #: 201004475	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 04/02/2010 8:45 PM	Location of Incident: Corner of § 87(2)(b) and § 87(2)(b) § 87(2)(b)		18 Mo. SOL 10/2/2011		Precinct: 83
Date/Time CV Reported Fri, 04/02/2010 10:33 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 04/02/2010 10:33 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Steven Bhagan	13662	942995	083 PCT
2. POM Derek Almeida	25236	946426	083 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Derek Almeida	Abuse: PO Derek Almeida stopped § 87(2)(b)	A . Unsubstantiated
B . POM Steven Bhagan	Abuse: PO Steven Bhagan stopped § 87(2)(b)	B . Unsubstantiated
C . POM Derek Almeida	Abuse: PO Derek Almeida frisked § 87(2)(b)	C . Unsubstantiated
D . POM Derek Almeida	Abuse: PO Derek Almeida searched § 87(2)(b)	D . Unsubstantiated

Case Summary

§ 87(2)(b) filed the following complaint of police misconduct on the CCRB call processing system on April 2, 2010. On the same day, he interacted with PO Derek Almeida and PO Steven Bhagan from the 83rd Precinct. Their interaction resulted in the following allegations:

- **Allegation A – Abuse of Authority:** PO Derek Almeida stopped § 87(2)(b)
- **Allegation B – Abuse of Authority:** PO Steven Bhagan stopped § 87(2)(b)
- **Allegation C – Abuse of Authority:** PO Derek Almeida frisked § 87(2)(b)
- **Allegation D – Abuse of Authority:** PO Derek Almeida searched § 87(2)(b)

§ 87(2)(g)
§ 87(2)(g), it is recommended that **allegations A through D be unsubstantiated.**

Inv. Duffy discussed mediation with § 87(2)(b) on April 12, 2010, but he rejected mediation § 87(2)(b)

Results of Investigation

Civilian Statement

Victim / Complainant: § 87(2)(b)

- § 87(2)(b) *black male, § 87(2)(b), brown hair, brown eyes, employed at § 87(2)(b) and dressed in work clothing § 87(2)(b) at the time of incident*

CCRB Testimony

§ 87(2)(b) made his initial complaint over the call processing system on April 2, 2010, and made an in-person statement at the CCRB on April 12, 2010. § 87(2)(g)

At approximately 8:45 pm on April 2, 2010, § 87(2)(b) left his house to go to work with a wallet in his back pocket and work gloves in a front pocket. He had nothing in his hands. § 87(2)(b) He crossed § 87(2)(b) and proceeded toward the corner of § 87(2)(b) and § 87(2)(b) He saw a marked police vehicle on the street, and the vehicle followed him down the street.

After following him for a few feet, the vehicle stopped and two officers identified by name by § 87(2)(b) as PO Bhagan and PO Almeida jumped from the car and approached him on the sidewalk. PO Almeida grabbed § 87(2)(b) by the wrist while PO Bhagan began to question him. He began by asking § 87(2)(b) why he was walking with a limp. § 87(2)(b) didn't want to go into his medical history but simply answered that he had a medical condition affecting his left leg. PO Bhagan then asked where he was going, and where he had come from. § 87(2)(b) said that this exchange went back and forth for a few minutes with an officer asking a question and him answering, until he surmised that the officers would probably ask him for identification. Before an officer asked him, § 87(2)(b) volunteered, "My ID is in my left back pocket." PO Bhagan ignored him; he told both officers where to find his ID two to three times, but they never responded. After a couple of minutes, PO Almeida, who had been holding § 87(2)(b) by the wrist this entire time, turned him around against a fence on the side of the street and handcuffed him. In his intake narrative, § 87(2)(b) did not say that PO Almeida was holding him by the wrist throughout the interaction. Rather, PO Almeida grabbed him by the wrist at this time to facilitate the handcuffing procedure.

After placing the cuffs, PO Almeida frisked § 87(2)(b)'s entire body, including his back, chest, and legs, where he felt the leg brace. PO Almeida also searched his jacket pockets and front and back pants pockets. He removed the wallet that § 87(2)(b) had referred to earlier from his back

pocket. Two marked police vehicles passed by and stopped when they saw PO Bhagan and PO Almeida. § 87(2)(b) explained that the incident location is approximately two blocks away from the 83rd Precinct stationhouse and patrol vehicles pass by all the time on their way to and from the stationhouse. Several officers left their vehicle, but they never interacted with § 87(2)(b) and left the area after a short while. Either PO Bhagan or PO Almeida removed § 87(2)(b)'s handcuffs when nothing was recovered in the course of the search.

When the handcuffs were removed, § 87(2)(b) asked all of the officers present (including some of those who had stopped by the incident location but not interacted with him) for their names and badge numbers, in a general request directed at the entire group. The officers who had just arrived all ignored him and returned to their respective vehicles, but PO Bhagan provided his name and shield number. PO Almeida did not. PO Bhagan and PO Almeida left the area in their vehicle. Neither officer ever explained the reason for the stop.

NYPD Statements:

Subject Officer: PO DEREK ALMEIDA

- § 87(2)(b) *Hispanic male, § 87(2)(b), dressed in uniform, brown hair, brown eyes*
- *Assigned to Housing Conditions, worked with PO Bhagan from 5:30 pm until 2:05 am in a marked RMP number 2695*

Stop, Question and Frisk Report

Memo Book Entry

CCRB Testimony

PO Almeida prepared a Stop, Question and Frisk report and a detailed memo book entry on the incident date. He was interviewed on June 4, 2010, § 87(2)(g). At approximately 8:50 pm on the incident date, PO Bhagan and PO Almeida were driving their RMP in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn, a drug prone area. PO Almeida noticed § 87(2)(b) walking toward the middle of the block on the left side of the street. He was “hugging” the fence lining the street, walked with a limp, and appeared to have a bulge near his left hip. He also seemed to be holding something on his left leg and was looking around in a manner that PO Almeida considered furtive. This combination of factors led him to believe that § 87(2)(b) was trying to hide a weapon. PO Almeida was operating the RMP and followed § 87(2)(b) a little further up the street in the vehicle until he was in an area with better lighting. He then stopped the RMP, exited, and approached § 87(2)(b).

When PO Almeida approached, he asked § 87(2)(b) if he had a medical condition. At this distance, he saw “a few bulges” on § 87(2)(b)'s left leg. § 87(2)(b) didn't answer the question but instead asked, “Why are you harassing me? Both of you guys are my size. I'll fuck you up.” PO Almeida explained why he was approaching, but § 87(2)(b) became angry and began to clench his fists. As PO Almeida continued to speak, § 87(2)(b) became more agitated and raised his arms toward both officers in a fighting stance. PO Almeida was threatened by § 87(2)(b)'s reaction and handcuffed him temporarily until he could investigate what was provoking this response. Both PO Almeida and PO Bhagan secured § 87(2)(b) in the cuffs, and he flailed and moved around a bit to resist being handcuffed.

After § 87(2)(b) was cuffed, PO Almeida frisked him only in the area where he had seen the bulge, along his left leg, the same area that he had been holding close to the wall and appeared to be grabbing with his left arm. He felt metal pieces through § 87(2)(b)'s clothing and discovered that § 87(2)(b) had a metal rod running from his left hip down to his left ankle. PO Almeida also saw the outline of a straight, hard object that he believed to be a weapon in his front pocket, which he later removed and determined to be a box cutter. However, because § 87(2)(b) verbally directed PO Almeida to his work identification, which was in his wallet in his back pocket, he

was able to determine that the box cutter was necessary for § 87(2)(b)'s job. When it was determined that § 87(2)(b) had no contraband or illegal weapons, he was uncuffed and released. § 87(2)(b) asked for the names and shield numbers of both officers, and they provided this information. A group of officers in an RMP stopped nearby to offer assistance at some point during the incident, but they didn't interact with § 87(2)(b) and left the area when they received a priority job over the radio. These officers weren't called by PO Almeida or his partner but happened to be in the area at the time.

Subject Officer: PO STEVEN BHAGAN

- § 87(2)(b) *Hispanic male officer, § 87(2)(b), dressed in uniform, black hair, brown eyes*
- *Assigned to Housing Conditions, worked with PO Derek Almeida, marked vehicle, 5:30 pm until 2:05 am*

Memo Book Entry

CCRB Testimony

PO Bhagan made a memo book entry on the incident date and was interviewed at the CCRB on May 14, 2010. § 87(2)(g)

§ 87(2)(b). When PO Almeida first noticed § 87(2)(b) on § 87(2)(b) he pointed him out to PO Bhagan and said that he saw a bulge on § 87(2)(b)'s left side. PO Bhagan did not see it. They observed him briefly until he moved to a section of the street with better lighting, at which time PO Bhagan was also able to see the bulge referenced by PO Almeida. The bulge was along the left hip, in the pocket area. § 87(2)(b) was immediately aggressive upon their approach and did not allow PO Almeida to question him before launching into the comments referenced above, regarding his perception that he was being harassed and his assessment that he could "fuck [the officers] up."

PO Bhagan said in his experience as an officer, he has known people concealing weapons to walk along the side of the street on which they are carrying the weapon, and to walk closely to the wall to shield the weapon from view. He said he generally practiced such a move when dressed in plainclothes, so no one would be able to see that he was armed. § 87(2)(b) was also walking with his hand on his leg. PO Bhagan elaborated to note that § 87(2)(b)'s arms did not move freely from side to side as he walked, but rather one hand was glued in place on his left, as though he was holding something down. PO Bhagan could not see his hand and didn't know if he was carrying anything. When PO Almeida frisked § 87(2)(b) he found a hard object in his left pants pocket that he removed and learned was a cellular phone in addition to the other items noted above.

NYPD Documents

§ 87(2)(g)

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York with regard to the incident.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b)

Subject Officers CCRB History

- PO Almeida and PO Bhagan have been members of the service for two years and three years, respectively, and there are no substantiated CCRB allegations against either officer.

Conclusion

Identification of Subject Officers

Both officers acknowledged interacting with § 87(2)(b) and PO Almeida prepared a UF 250 report documenting their interaction.

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: PO Derek Almeida stopped § 87(2)(b)

Allegation B - Abuse of Authority: PO Steven Bhagan stopped § 87(2)(b)

Allegation C – Abuse of Authority: PO Derek Almeida frisked § 87(2)(b)

Allegation D – Abuse of Authority: PO Derek Almeida searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) and both officers agreed that they approached and asked him about his limp or any possible medical conditions. § 87(2)(b) alleged that PO Almeida grabbed him by the wrist during the questioning, but both officers denied this. In contrast, both officers asserted in their in-person statements and in police documentation that § 87(2)(b) told them he would “fuck [them] up.” § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) as noted above, affirmed that he had a medical condition, but provided no further detail to aid in the officers’ investigation. PO Almeida said that § 87(2)(b) never answered the initial question, but instead asked why the officers were harassing him, to which PO Almeida responded by explaining the basis for the stop; PO Bhagan said that § 87(2)(b) didn’t allow PO Almeida to ask any questions or provide explanations before he began his verbal threats. PO Almeida stated that § 87(2)(b) moved into a fighting stance, whereas PO Bhagan characterized his movements as flailing, and § 87(2)(b) denied engaging in physical resistance of any kind. § 87(2)(g)

§ 87(2)(g)

it is recommended that **allegations A through D be unsubstantiated.**

Team: ____1____

